

Objection 12: Sustained (Evid. Code §§ 403, 1200, 1520-22.)

Objection 13-25: Sustained (403, 1400-1401.)

Objections to Douglas B. Flett Declaration:

Objection 26: Overruled.

Objection 27: Overruled.

Objection 28: Overruled.

Objection 29: Sustained (Evid. Code §§ 403, 702, *Hayman v. Block* (1986) 176 Cal.App.3d 629, 638-39.)

Objection 30: Overruled.

Objection 31: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 32: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 33: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 34: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection to Mark L. Mosley Declaration and Exhibits thereto:

Objection 35: Overruled.

Objection 36: Sustained (Evid. Code §§ 403, 1200, 1400-1401.)

Objection 37: Overruled.

Objection 38-40: Sustained (Evid Code §§ 403, 1200, 1400-1401.)

8. 9:00 AM CASE NUMBER: C23-02480

CASE NAME: ROWENA ESTILLORE VS. CAPGEMINI AMERICA INC.

***MOTION/PETITION TO COMPEL ARBITRATION CONFIRM CONTRACTUAL ARBITRATION AWARD
FILED BY: CAPGEMINI AMERICA INC.**

TENTATIVE RULING:

Summary

Defendant Capgemini America, Inc.'s ("Defendant") Petition to Confirm Arbitration Award is **granted**. No appearance is required at the hearing on December 17, 2025.

Background

In this case, Plaintiff Rowena Estillore ("Plaintiff") alleges claims for discrimination, harassment, retaliation, unpaid wages, fraud, wrongful termination, intentional tort, and intentional and negligent misrepresentation. Each of these claims arises out of her employment with Defendant Capgemini America, Inc. Plaintiff was as a software engineer for Defendant.

This case was removed to the United States District Court, Northern District, California from Contra Costa Superior Court on November 10, 2023. On January 26, 2025, the Hon. James Donato entered an Order re Arbitration in *Rowena Estillore v. Capgemini America Inc.*, USDC Case No. 3:23-cv-05816-JD. The Order entered by the Court specifies that this case is dismissed after the granting of Defendant's Motion for Summary Judgment by the arbitrator, Hon. Victor E. Bianchini (Ret.).(See Attachment 8(c)- Award of Arbitrator)

On August 29, 2025, Defendant filed a Petition to Confirm Contractual Arbitration Award. The Petition

was supported by a Notice, Declaration of Ryan McCoy, and a proposed order. The Petition is not opposed by Plaintiff.

Analyses

California Rules of Court, Rule 8.54(c) provides that “A failure to oppose a motion may be deemed a consent to the granting of the motion.” This principle is well-established in case law. *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257. The failure to file a timely opposition is “well-within” the court’s discretion to deem such inaction “tantamount to a concession that its position in the litigation was not substantially justified.” *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989)). Furthermore, a failure to address or oppose an issue in a motion constitutes a waiver of that issue. *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288. Similarly, a failure to support a point with reasoned argument and relevant authority also constitutes waiver. *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785.

Applied to the present matter, Plaintiff’s failure to file any opposition to the Petition to Confirm Arbitration Award is deemed to be her consent to the relief sought by the Petition.

Ruling

Based on the foregoing, the Court finds good cause to grant Defendant’s Petition to Confirm Arbitration Award. The Petition is **granted**. The Court will execute the proposed order lodged by Defendant on September 16, 2025 and orders the Defendant to file a Judgment accordingly.

9. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Before the Court is all the captioned Defendants’ Demurrers and Motions to Strike. The Demurrers and Motions to Strike relate to Plaintiff’s FAC for seven causes of action for employment-related claims revolving around sexual batter and negligence.

For the following reasons, **Defendants’ Demurrer is sustained in its entirety with leave to amend.**

Meet and Confer Requirement

Defendants failed to satisfy their meet and confer requirements regarding their Demurrers and Motions to Strike. Defendants’ Counsel explained that their meet and confer effort with Plaintiff’s counsel consisted of one email meet and confer email sent on August 18, 2025. (Feenberg Decl. ¶ 2.) This effort is not statutorily complaint and is simply not enough.

This does not satisfy the requirements of Code of Civil Procedures section 430.41, as counsel never met and conferred with Plaintiff’s counsel in person, by telephone, or by video conference. (CCP § 430.41(a).)

The expected cooperation between the Parties is the breath that gives life to the meet and confer